

Asha Chakraborty vs Rajesh Chakraborty on 8 August, 2022

Author: Parthivjyoti Saikia

Bench: Parthivjyoti Saikia

Page No.# 1/3

GAHC010210112021

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : Tr.P.(C) ./75/2021

ASHA CHAKRABORTY
D/O SUJIT CHAKRABORTY, W/O RAJESH CHAKRABORTY, R/O PANDU NEW
COLONY, P.O.-PANDU, GUWAHATI-781012, DIST- KAMRUP(M), ASSAM

VERSUS

RAJESH CHAKRABORTY
S/O GURUDAS CHAKRABORTY, R/O VIVEKANDA COLONY, P.S.-DOBOKA,
CIRCLE- DOBOKA, MOUZA- JAMUNAMUKH, DIST- HOJAI, ASSAM

Advocate for the Petitioner : MR. S C BISWAS
Advocate for the Respondent : MR. M A LASKAR (R-1)

:: BEFORE ::
HON'BLE MR. JUSTICE PARTHIVJYOTI SAIKIA

O R D E R

o8.08.2022 Heard Mr. S.C. Biswas, the learned counsel appearing for the petitioner. Also heard Mr. M.A. Laskar, learned counsel representing the sole respondent/husband.

2. This is an application under Section 24 of the Code of Civil Procedure, 1908 praying for transfer of Title Suit (Divorce) No.56/2021) Page No.# 2/3 pending in the court of the learned District Judge, Sankardev Nagar, Hojai to the court of the Principal, Judge, Family Court, Kamrup (Metro) at Guwahati.

3. The petitioner married the respondent/husband on 06.02.2013. They started their conjugal life at Doboka, Hojai where the respondent resides. Out of the wedlock, a female child was born on 24.06.2014.

4. The respondent/husband runs a Hardware Shop by the name and style "M/S. Chakraborty Hardware" at Doboka Town.

5. After few months of their marriage, matrimonial disputes started to appear. It is stated by the petitioner that under the influence of alcohol she was regularly physically harassed by the respondent/husband. Ultimately, she was compelled to leave her matrimonial home on 12.03.2017. Now, she has been residing in Guwahati with her parents.

6. In the meantime, her husband/respondent filed a divorce suit under Section 13(i) of the Hindu Marriage Act, 1955 at Hojai. The case was registered as T.S.(D) No.56/2021. The petitioner was served with a notice.

7. Now, the petitioner claims that it will be difficult on her part to travel to Hojai to contest the divorce proceeding effectively. She has stated that apart from financial problems, there is nobody in her matrimonial house to escort her to Hojai and back. The petitioner has claimed that if the case is transferred to Guwahati, it would be convenient for her to effectively contest the proceeding. According to the petitioner, if her prayer is rejected by this Court, she will be highly prejudiced and would suffer irreparable loss.

Page No.# 3/3

8. The respondent/husband contended that he has to look after his business as well as other family members and it would be difficult for him if the case is transferred to Guwahati.

9. I have considered the submissions of the learned counsel for both sides.

10. The provision of law as laid down in Section 24 of the Civil Procedure Code, is based on the principle that in a litigation both sides should have equal opportunity to contest the proceeding.

11. This Court is of the opinion that the petitioner, who has look after her 7 years old child and since she is a woman, has presented a good case for herself. I have decided to agree with her that if the case is transferred to Guwahati, it will be convenient for the petitioner to contest the case. I am of the opinion that for an able-bodied male travelling 170 kms. from Hojai to Guwahati would not cause hardship to him. This may not be easy for a woman.

12. Under the aforesaid circumstances, the prayer of the petitioner is allowed. Title Suit (Divorce) No.56/2021) pending in the court of the learned District Judge, Sankardev Nagar, Hojai shall be transferred to the court of the learned Principal, Judge, Family Court, Kamrup (Metro) at Guwahati for disposal.

Accordingly, the petition stands disposed of.

JUDGE Comparing Assistant